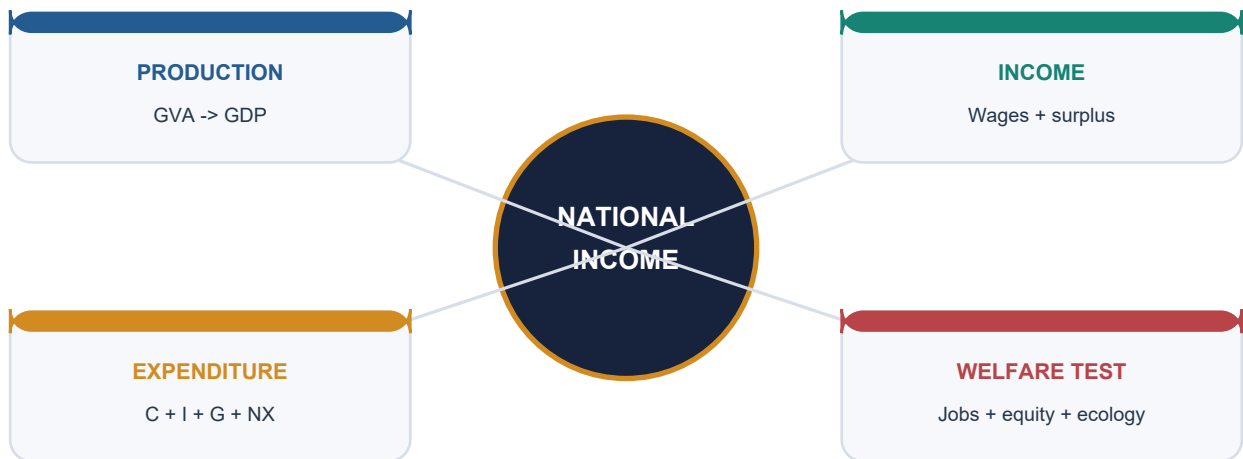


Polity 38 — Lokpal and Lokayuktas

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing



Deterministic fallback visual: national income viewed through production, income, expenditure and welfare lenses.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Polity 38 — Lokpal and Lokayuktas

PYQ, Practice and Solved Workbook

A. PYQ Routing Audit

[FACT] All local Prelims and Mains routing ledgers/audit files were searched for “Lokpal”, “Lokayukta” and “ombudsman”. One direct routed question was found: **2025 Prelims GS-I, Set A, Question 98**. No direct verified Mains PYQ was routed to this owner.

[LIMIT] The absence of a direct routed Mains PYQ does not mean the topic is unimportant for GS-II; it means original Mains practice below must not be mislabeled as UPSC PYQs.

Visual 61 — Verified PYQ Coverage

Year/paper	Question	Routing status	Key treatment
2025 Prelims GS-I Set A	Q98 — Lokpal jurisdiction/composition	Direct verified routed PYQ	Official Set-A key checked locally
Mains	No direct verified routed Lokpal/Lokayukta question found	None	No invented PYQ

Caption: The workbook reproduces the verified objective demand and labels every descriptive question as original.

B. Verified Prelims PYQ — 2025 GS-I Set A Q98

Consider the following statements about Lokpal: I. The power of Lokpal applies to public servants of India, but not to the Indian public servants posted outside India. II. The Chairperson or a Member shall not be a Member of the Parliament or a Member of the Legislature of any State or Union Territory, and only the Chief Justice of India, whether incumbent or retired, has to be its Chairperson. III. The Chairperson or a Member shall not be a person of less than forty-five years of age on the date of assuming office as the Chairperson or Member, as the case may be. IV. Lokpal cannot inquire into the allegations of corruption against a sitting Prime Minister of India. Which of the statements given above is/are correct? (a) III only (b) II and III (c) I and IV (d) None of the above statements is correct

Official Set-A key: A — III only.

[FACT] This letter is not inferred from the routing ledger. The ledger records that the answer was omitted there; the official local **Ans-2025-GS1.pdf** was directly checked and records **Q98 = A** for Series A.

Visual 62 — Statement Audit

Statement	Verdict	Named evidence
I	False	Section 1(3): Act applies to public servants in and outside India
II	False	Section 3: Chair may be CJI/SC Judge/eminant qualified person; Member/legislator disqualification is only part of statement
III	True	Section 3(4)(iii): minimum age 45
IV	False	Section 14 includes PM with exclusions and special procedure

Caption: A compound statement is false if any component is false.

Visual 63 — PYQ Elimination Route

I: "not outside India" -> contradicts section 1(3) -> eliminate C
II: "only CJI Chair" -> contradicts section 3 -> eliminate B
IV: "PM cannot be inquired" -> contradicts section 14 -> eliminate C/D logic
III alone survives -> option A

Caption: The question tests exact statutory qualifiers rather than general awareness.

C. Original MCQs — 36 Questions

MCQ 1

Which statement best describes the Lokpal?

A. It is a statutory anti-corruption ombudsman whose powers and limits arise from the 2013 Act. B. It is a constitutional court for corruption offences. C. It is the investigative division of the CVC. D. It is an executive body created only by a government resolution.

Answer: A.

Explanation: [FACT] The Lokpal is established by the Lokpal and Lokayuktas Act, 2013. It routes inquiries/investigations and exercises defined process powers, but a Special Court determines guilt.

MCQ 2

The Lokpal consists of:

A. A Chairperson and exactly eight Members. B. A Chairperson and not more than eight Members. C. A Chairperson, eight Members and the CVC as an ex officio Member. D. A Chairperson and not more than ten Members.

Answer: B.

Explanation: [FACT] Section 3 sets a ceiling of eight Members. "Not exceeding" must not be converted into a permanently filled exact number.

MCQ 3

Which composition statement is correct?

A. Half of the whole institution, including the Chairperson, must be judicial. B. At least half of the Members must be serving judges. C. Fifty per cent of the Members shall be Judicial Members, and not less than fifty per cent of Members must satisfy the listed representation rule. D. The representation rule applies only to non-judicial Members.

Answer: C.

Explanation: [FACT] Both calculations use "Members" as the denominator. Judicial Members can be former office-holders; the social-representation rule is not restricted to non-judicial seats.

MCQ 4

Who may be appointed Chairperson under section 3?

A. Only a serving Chief Justice of India. B. Only a former Chief Justice of India. C. Only a Supreme Court Judge. D. A current/former CJI, current/former Supreme Court Judge, or an eminent person satisfying the statutory expertise condition.

Answer: D.

Explanation: [FACT] The Chairperson has both judicial and eminent-person routes. The eminent-person route imports the non-judicial integrity, ability, expertise and experience requirements.

MCQ 5

A non-judicial Member must ordinarily possess:

- A. At least twenty-five years of special knowledge and expertise in the listed fields. B. Ten years of judicial office. C. Twenty years as an MP. D. Thirty years in any occupation.

Answer: A.

Explanation: [FACT] Section 3 specifies twenty-five years and named fields including anti-corruption policy, administration, vigilance, finance, law and management.

MCQ 6

Which person is not expressly disqualified merely by the stated fact?

- A. A sitting MP. B. A retired civil servant aged 60 who meets all eligibility conditions. C. A sitting Municipality member. D. A person removed from State service.

Answer: B.

Explanation: [FACT] Retirement from public service is not a disqualification. Sitting legislative/local-body office, removal/dismissal and the other listed grounds are.

MCQ 7

The Selection Committee for Lokpal appointments includes:

- A. President, Prime Minister, CJI, CVC and Attorney General. B. Prime Minister, Rajya Sabha Chairman, LoP, CJI and CVC. C. Prime Minister, Lok Sabha Speaker, Lok Sabha LoP, CJI/nominee and an eminent jurist. D. Prime Minister, Home Minister, LoP, CJI and Cabinet Secretary.

Answer: C.

Explanation: [FACT] Section 4 names these five positions. The eminent jurist is nominated by the President on recommendation of the first four.

MCQ 8

The eminent jurist on the Selection Committee is:

- A. Elected by Parliament. B. Selected by the Search Committee. C. Nominated by the CJI alone. D. Nominated by the President on recommendation of the other four Selection Committee members.

Answer: D.

Explanation: [FACT] This exact nomination route prevents the error that the President has an unguided independent choice.

MCQ 9

Which statement about the Search Committee is correct?

- A. It has at least seven persons, a statutory diversity floor and prepares a panel, but its panel is not exclusive. B. It consists of exactly five constitutional office-holders. C. It makes the final presidential appointment. D. It can consider only serving judges.

Answer: A.

Explanation: [FACT] Section 4(3) provides at least seven experts and allows the Selection Committee to consider persons outside the Search Committee's recommendations.

MCQ 10

Under current section 4 and *Common Cause*:

A. Absence of a recognised LoP automatically substitutes the Home Minister. B. A vacancy does not by itself invalidate appointment, and a truncated committee may proceed. C. Every appointment made without LoP is void. D. The Search Committee becomes the appointing authority.

Answer: B.

Explanation: [FACT] Section 4(2) is the vacancy-validity rule. *Common Cause* held the Act workable; it did not enact a new substitute seat.

MCQ 11

The ordinary tenure rule is:

A. Six years or age 65, whichever earlier. B. Five years without age ceiling. C. Five years or age 70, whichever earlier. D. Four years or age 70, whichever earlier.

Answer: C.

Explanation: [FACT] Section 6 uses five years from entry or age seventy, whichever occurs first.

MCQ 12

Which post-tenure proposition is correct?

A. Every Member may be reappointed for another full five-year term. B. The Chairperson may immediately contest for Parliament. C. A former Member may accept any Union office of profit. D. A Member may become Chairperson only if aggregate Lokpal tenure does not exceed five years.

Answer: D.

Explanation: [FACT] Section 8 creates broad ineligibilities and one limited Member-to-Chairperson exception with an aggregate cap.

MCQ 13

Removal for misbehaviour ordinarily begins with:

A. A petition signed by at least one hundred MPs followed by Presidential reference to the Supreme Court. B. A Cabinet resolution. C. A Lokpal internal inquiry. D. A simple-majority Lok Sabha motion.

Answer: A.

Explanation: [FACT] Section 37 supplies its own threshold and Supreme Court inquiry route. Lokpal cannot inquire into its own Chairperson/Member.

MCQ 14

Which is a direct presidential removal ground under section 37(4)?

A. Policy disagreement with the Government. B. Being adjudged insolvent. C. Dissenting from another Member. D. Receiving an adverse media report.

Answer: B.

Explanation: [FACT] Insolvency, paid outside employment during tenure and infirmity rendering the person unfit are listed direct grounds.

MCQ 15

A complaint concerning the Prime Minister can proceed only if, among other conditions:

A. The CVC unanimously approves. B. Parliament passes a resolution. C. A full Lokpal bench considers initiation and at least two-thirds of its Members approve. D. The CJI conducts the preliminary inquiry.

Answer: C.

Explanation: [FACT] Section 14 creates a full-bench supermajority screen in addition to excluded subject domains and in-camera procedure.

MCQ 16

If a PM complaint is dismissed after the special inquiry:

A. It must be tabled in Parliament. B. It must be published after thirty days. C. Only the complainant may publish it. D. The inquiry records shall not be published or made available to anyone.

Answer: D.

Explanation: [FACT] This is the specific consequence in the second proviso to section 14(1)(a).

MCQ 17

Which proposition correctly reconciles section 14(2) with *Sita Soren*?

A. Bona fide parliamentary speech/vote remains protected, but bribery for it is not immunised. B. Every parliamentary speech may be investigated as corruption. C. MPs are completely outside Lokpal jurisdiction. D. Article 105(2) was repealed judicially.

Answer: A.

Explanation: [FACT] The 2024 judgment removed bribery immunity while preserving privilege's functional protection.

MCQ 18

Where Lokpal chooses preliminary inquiry for Groups A-D Union officials:

A. Every category is sent directly to the Special Court. B. CVC reports on Groups A/B to Lokpal and proceeds under the CVC Act for Groups C/D. C. CBI decides whether Lokpal has jurisdiction. D. Departments conduct the final criminal trial.

Answer: B.

Explanation: [FACT] The two provisos to section 20(1) create category-specific CVC routing.

MCQ 19

Section 14(1)(h) covers specified officers of certain entities receiving:

A. Any domestic donation. B. Any government grant, however small, without further condition. C. Foreign-source donations exceeding ten lakh rupees in a year or a higher notified amount. D. Only United Nations grants.

Answer: C.

Explanation: [FACT] The statutory threshold is ten lakh rupees or a higher notified amount. Clause (g)'s government-finance threshold is separately notification-dependent.

MCQ 20

Former public servants:

A. Are automatically immune after retirement. B. Are covered only if re-employed. C. Are covered for every private act in their lifetime. D. May remain covered for alleged conduct during the period they served in the relevant statutory capacity.

Answer: D.

Explanation: [FACT] Section 14 repeatedly uses “is or has been”, while its explanation ties the complaint to the covered period.

MCQ 21

Which is required by the Complaint Rules, 2020?

A. Prescribed form, identity proof, affidavit and signed detailed allegation. B. Anonymous oral information alone. C. Prior permission of the accused public servant. D. Filing only through a lawyer.

Answer: A.

Explanation: [FACT] The Rules prescribe filing form/mode and required annexures. They do not create an anonymous channel.

MCQ 22

The best distinction between preliminary inquiry and investigation is:

A. Both are final trials. B. Preliminary inquiry tests prima facie basis; investigation gathers evidence for the criminal report. C. Preliminary inquiry is always by a court. D. Investigation is only departmental.

Answer: B.

Explanation: [FACT] Sections 2 and 20 assign different purposes, procedures and outputs to the two stages.

MCQ 23

Which timeline combination is correct?

A. Preliminary inquiry always ends in 30 days; investigation in 90 days. B. Preliminary report in 90 days; investigation cannot be extended. C. Report within 60 days of reference; ordinary inquiry 90 days with further 90 days for recorded reasons. D. Every inquiry and trial must finish within six months.

Answer: C.

Explanation: [FACT] Section 20 contains both a 60-day report rule and the 90+90 overall preliminary-inquiry framework.

MCQ 24

After considering a preliminary inquiry report, a three-Member bench may:

A. Convict the public servant. B. Dissolve the department. C. Amend the Prevention of Corruption Act. D. Order investigation, departmental/other action, or closure under the statutory conditions.

Answer: D.

Explanation: [FACT] Section 20(3) lists these options. Conviction is not among them.

MCQ 25

An investigation directed by Lokpal should ordinarily be completed within:

- A. Six months, with recorded-reason extensions not exceeding six months at a time. B. Thirty days without extension. C. One year without extension. D. Seven years.

Answer: A.

Explanation: [FACT] Section 20(5) establishes the six-month period and extension architecture.

MCQ 26

Lokpal's superintendence over DSPE:

- A. Covers every CBI case in India. B. Applies to matters Lokpal refers, but cannot dictate investigation/disposal in a particular manner. C. Converts Lokpal into the CBI Director. D. Eliminates all federal consent requirements.

Answer: B.

Explanation: [FACT] Section 25 is referred-matter specific and contains an express anti-dictation proviso.

MCQ 27

An officer of DSPE investigating a Lokpal-referred case:

- A. May be transferred only by Parliament. B. Can never be transferred. C. Cannot be transferred without Lokpal approval. D. Is appointed by the complainant.

Answer: C.

Explanation: [FACT] Section 25(3) creates a case-specific transfer safeguard.

MCQ 28

Under section 26:

- A. Lokpal personally conducts every physical search. B. CVC issues all search warrants. C. Search is barred before investigation. D. Lokpal may authorise the agency entrusted with investigation to search for and seize relevant secreted documents.

Answer: D.

Explanation: [FACT] The power is authorisation through the investigating agency, not a general Lokpal police force.

MCQ 29

The Inquiry Wing's civil-court powers include:

- A. Summoning persons and requiring document production for preliminary inquiry. B. Awarding criminal sentences. C. Declaring statutes unconstitutional. D. Exercising a general contempt jurisdiction.

Answer: A.

Explanation: [FACT] Section 27 enumerates specified civil-procedure powers. It does not confer final criminal adjudication or general contempt power.

MCQ 30

Provisional attachment under section 29 may ordinarily last:

- A. Thirty days with no court role. B. Up to ninety days, followed by Special Court control. C. Indefinitely at Lokpal's discretion. D. Until retirement of the public servant.

Answer: B.

Explanation: [FACT] Recorded reasons and material are required; the order/material must be sent to the Special Court.

MCQ 31

Lokpal's prosecution-sanction power:

A. Is identical to a conviction. B. Applies without any statutory conditions to every constitutional office-holder. C. Authorises prosecution under the section 20 route, subject to section 23's qualifications. D. Replaces the Special Court.

Answer: C.

Explanation: [FACT] Sanction is a procedural gateway. Section 23(3) preserves the qualification for constitutional offices with specified removal procedure.

MCQ 32

The Special Court is expected to complete trial:

A. Within three months in every case. B. Within six months with no extension. C. Whenever Lokpal directs, without statutory target. D. Within one year, with recorded three-month extensions but total not exceeding two years.

Answer: D.

Explanation: [FACT] Section 35 sets the one-year target and the structured extension ceiling.

MCQ 33

Section 53 bars a complaint made:

A. More than seven years after the date of the alleged offence. B. More than seven years after retirement only. C. More than three years after discovery. D. After any departmental inquiry begins.

Answer: A.

Explanation: [FACT] The alleged-offence date is the statutory anchor.

MCQ 34

After the 2016 amendment, section 44:

A. Abolishes all asset declarations. B. Requires declaration in the form and manner to be prescribed. C. Automatically republishes the original detailed format. D. Applies only to MPs.

Answer: B.

Explanation: [FACT] The duty remains, but the detailed form/manner moved to prescription. The old rules were officially described as redundant.

MCQ 35

Section 63 of the Union Act:

A. Prescribes one national composition for all Lokayuktas. B. Appoints every Lokayukta through the President. C. Requires State establishment by State law but leaves institutional design to State legislation. D. Abolishes pre-existing State Lokayukta laws.

Answer: C.

Explanation: [FACT] The one-year establishment duty does not impose Lokpal's exact model on States.

MCQ 36

Which statement about the statutory wings is most accurate?

A. Both wings were fully staffed from 2014 by operation of the Act alone. B. Inquiry Wing conducts all criminal trials. C. Prosecution Wing is the CBI. D. Inquiry Wing was formally constituted in 2024 and Prosecution Wing in 2025, but formal creation does not prove full staffing or output.

Answer: D.

Explanation: [CURRENT] Official Lokpal records establish the constitution dates and organogram; [LIMIT] capacity and performance require separate evidence.

D. Remedial MCQs — 12 Questions

Visual 64 — Remedial Error Map

Recurring error	Corrective rule
"PM is immune"	PM is covered, but specified domains and a special screen apply
"Lokpal controls all CBI work"	Superintendence is confined to Lokpal-referred matters
"The Union Act standardises Lokayuktas"	Section 63 leaves design to State law
"Wing notified = fully operational"	Constitution, staffing and output are separate facts
"Sanction/attachment = guilt"	These are interim/procedural steps; court adjudication remains
"Original asset-disclosure model continues unchanged"	Section 44 was substituted in 2016

Caption: Remedials target the exact overstatements that UPSC converts into close options.

Remedial MCQ 37

Which is **not** one of the subject domains expressly excluded from a Lokpal inquiry against the Prime Minister?

A. Agriculture and irrigation policy. B. International relations. C. External and internal security. D. Atomic energy and space.

Answer: A.

Explanation: [FACT] Section 14 names international relations, external/internal security, public order, atomic energy and space. It does not create a general policy-domain immunity.

Remedial MCQ 38

Which federal statement is correct?

A. Parliament directly fixes every State Lokayukta's jurisdiction. B. State legislation determines the actual Lokayukta design within each State. C. The Lokpal Chairperson appoints all State Lokayuktas. D. A State Lokayukta is a bench of the Union Lokpal.

Answer: B.

Explanation: [FACT] Section 63 mandates establishment by State law; [ANALYSIS] therefore comparison must be design-variable, not based on a fictitious uniform model.

Remedial MCQ 39

Which statement best captures the Lokpal-CVC relationship?

A. CVC is subordinate to Lokpal for every function. B. Lokpal ceased to have jurisdiction over Groups A and B. C. CVC acts as a statutory preliminary-inquiry channel in referred public-servant categories and reports back as section 20 requires. D. CVC conducts the Special Court trial.

Answer: C.

Explanation: [FACT] Referral/reporting is case- and category-specific. [LIMIT] It does not establish a universal institutional hierarchy.

Remedial MCQ 40

As of the legal control date, the safest statement on Lokpal jurisdiction over sitting High Court judges is:

A. The Supreme Court finally upheld it. B. Parliament expressly amended section 14 to include them. C. Every complaint must proceed without scrutiny. D. The Supreme Court stayed the Lokpal order asserting jurisdiction; no final merits holding should be claimed from that interim order.

Answer: D.

Explanation: [CURRENT] The 20 February 2025 Supreme Court order stayed the impugned Lokpal order. [LIMIT] A stay is not a final precedent deciding the merits.

Remedial MCQ 41

Which date-status pairing is officially supported?

A. Inquiry Wing — constituted 5 September 2024; Prosecution Wing — constituted 6 June 2025 and Gazette-notified 13 June 2025. B. Both wings — constituted automatically on 1 January 2014. C. Inquiry Wing — constituted by the Supreme Court. D. Prosecution Wing — constituted under the CVC Act.

Answer: A.

Explanation: [CURRENT] Official Lokpal/Gazette records support these dates. [LIMIT] They do not alone establish vacancy-free staffing or a quantified case-output history.

Remedial MCQ 42

Which asset-declaration claim is defensible?

A. The 2016 amendment eliminated the legal duty itself. B. The amended Act retains a declaration duty but leaves form and manner to prescription; the old rules were officially treated as redundant. C. *Lok Prahari* automatically restored the original section 44 form. D. Every declaration must, under the present statutory text alone, be uploaded in the original public format.

Answer: B.

Explanation: [FACT] Section 44 was substituted. [LIMIT] *Lok Prahari* concerned electoral disclosure and monitoring; it is not a substitute for rules under the amended provision.

Remedial MCQ 43

An alleged offence occurred eight years before the complaint. Which provision is directly relevant?

A. Section 35's trial target. B. Section 44's asset declaration. C. Section 53's seven-year complaint bar. D. Section 63's State duty.

Answer: C.

Explanation: [FACT] Section 53 counts from the date on which the alleged offence was committed.

Remedial MCQ 44

Which statement correctly separates the two removal routes?

A. Every removal requires one hundred MPs. B. Every removal requires only a presidential order. C. Lokpal itself finally removes a Member. D. Misbehaviour ordinarily uses the parliamentary-petition/Supreme Court inquiry route, while specified grounds such as insolvency permit direct presidential removal.

Answer: D.

Explanation: [FACT] Section 37 contains both routes. Mixing it with CVC/NHRC removal procedures produces a wrong answer.

Remedial MCQ 45

Why must an answer distinguish allegation from guilt?

A. Lokpal's scrutiny, inquiry, investigation and sanction are process stages; criminal guilt is adjudicated by the Special Court. B. Lokpal has no role after receiving a complaint. C. Every complaint automatically proves misconduct. D. Departmental action and criminal conviction are identical.

Answer: A.

Explanation: [ANALYSIS] Due-process vocabulary is essential: prima facie satisfaction, evidence collection and prosecution are not conviction.

Remedial MCQ 46

Before Lokpal decides the statutory course on a preliminary inquiry report:

A. It must publish the complete file. B. The public servant is afforded an opportunity of being heard under section 20. C. The complainant becomes the prosecutor. D. The agency may impose sentence.

Answer: B.

Explanation: [FACT] Section 20 builds hearing safeguards into the post-report decision stage.

Remedial MCQ 47

Which entity-coverage statement is most accurate?

A. Every private association in India is automatically under Lokpal. B. Only Union Ministries can ever be covered. C. The Act extends to specified government-connected or financed entities and to specified foreign-contribution recipients, subject to statutory/notification conditions. D. Foreign contribution is irrelevant to jurisdiction.

Answer: C.

Explanation: [FACT] Sections 14(1)(g)-(h) are conditional coverage clauses; they should not be rewritten as a general private-sector jurisdiction.

Remedial MCQ 48

Which institutional chain is correct?

A. Lokpal convicts, CBI appeals, CVC pardons. B. CVC appoints Lokpal and Lokpal appoints judges. C. CBI controls every Lokpal bench. D. Lokpal may route/supervise referred inquiry or investigation, an agency gathers material, the Prosecution Wing may pursue the case, and a Special Court adjudicates.

Answer: D.

Explanation: [ANALYSIS] This is a functional chain, not a claim that one institution is generally subordinate to another.

Visual 65 — Complete Objective-Practice Rotation

Q01-04 A B C D Q05-08 A B C D Q09-12 A B C D
Q13-16 A B C D Q17-20 A B C D Q21-24 A B C D
Q25-28 A B C D Q29-32 A B C D Q33-36 A B C D
Q37-40 A B C D Q41-44 A B C D Q45-48 A B C D

Caption: All 48 original/remedial answer markers follow one uninterrupted A-B-C-D cycle.

E. Original Solved Mains Practice — 8 Questions

[LIMIT] Every question in this section is original practice, not a claimed UPSC PYQ.

Mains 1 — 10 marks | 150 words

Question: “The Lokpal is an ombudsman, not a corruption court.” Explain.

Visual 66 — Demand Decoder

Term	What the answer must establish
Ombudsman	Receives and processes public-integrity grievances
Not a court	Does not itself conduct the criminal trial or convict
Statutory powers	Inquiry, referral, superintendence, sanction, attachment
Qualification	Special Court retains adjudicatory role

Caption: The answer should define, distinguish and then qualify.

Evidence spine

1. [FACT] Lokpal and Lokayuktas Act, 2013 establishes the institution.
2. [FACT] Sections 11-12 provide Inquiry and Prosecution Wings.
3. [FACT] Section 20 separates preliminary inquiry, investigation and prosecution decisions.
4. [FACT] Sections 29-32 provide attachment/confiscation processes under court control.
5. [FACT] Section 35 provides for Special Courts and trial timelines.

Model answer

The Lokpal is India’s statutory anti-corruption ombudsman at the Union level. It receives complaints against covered public functionaries and subjects them to a legally structured process.

Its functions are substantial: it may order a preliminary inquiry or investigation, use the CVC for specified public-servant categories, exercise superintendence over the DSPE in Lokpal-referred matters, protect investigating officers from transfer without approval, authorise search and seizure, initiate provisional attachment, grant prosecution sanction in the statutory route and use its Prosecution Wing.

However, these are **screening, evidence-gathering and prosecution-enabling powers**, not final criminal adjudication. A preliminary inquiry tests whether a prima facie case exists; an investigation collects evidence; sanction permits prosecution. Attachment is provisional and comes under Special Court control. The Special Court, applying criminal law and due process, decides guilt and punishment.

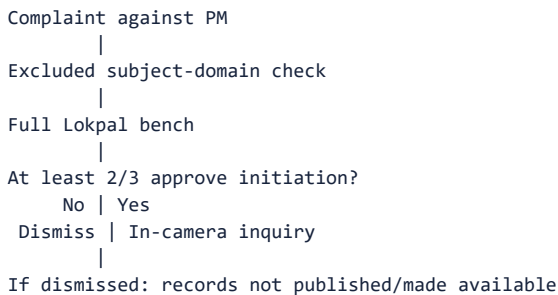
Thus, calling Lokpal a “corruption court” exaggerates its legal character. It is better understood as an institutional gateway and integrity coordinator with defined coercive powers, while adjudication remains judicial.

Examiner value-add: Use the line “process authority is not adjudicatory guilt”.

Mains 2 — 10 marks | 150 words

Question: Discuss the special statutory safeguards governing complaints against the Prime Minister under the Lokpal and Lokayuktas Act.

Visual 67 — PM Safeguard Funnel



Caption: Coverage exists, but it is filtered by substantive and procedural safeguards.

Evidence spine

- [FACT] Section 14 covers a person who is or has been Prime Minister.
- [FACT] Excluded domains: international relations, external/internal security, public order, atomic energy and space.
- [FACT] Full bench and at least two-thirds approval are required.
- [FACT] Inquiry is in camera; dismissed-inquiry records receive special secrecy protection.

Model answer

The Act rejects both extremes of complete Prime Ministerial immunity and ordinary identical treatment.

First, it places a serving or former Prime Minister within Lokpal jurisdiction. Secondly, it excludes allegations relating to international relations, external or internal security, public order, atomic energy and space. These exclusions protect high-sensitivity sovereign decision-making, but they are subject-specific rather than a blanket personal immunity.

Thirdly, initiation requires consideration by the **full bench** of the Lokpal and approval by at least **two-thirds of its Members**. Fourthly, the inquiry must be held **in camera**. If the complaint is dismissed, the records of the inquiry cannot be published or made available to anyone.

[ANALYSIS] These safeguards seek to reconcile high-office accountability with governmental stability, confidentiality and protection against politically motivated complaints. Yet the high threshold and secrecy can reduce public visibility. The best reform approach is therefore not to dilute the statutory test casually, but to ensure reasoned institutional processes and aggregate transparency consistent with the secrecy clause.

Mains 3 — 10 marks | 150 words

Question: Why does section 63 not create a uniform national model of Lokayuktas?

Visual 68 — Federal Design Matrix

What section 63 does	What it does not do
Requires every State to establish a Lokayukta	Prescribe identical composition
Requires establishment through State law	Fix one appointment process
Sets a Union statutory expectation	Uniformly define CM/minister/bureaucracy jurisdiction
Leaves operative design to States	Equalise powers, budgets or removal safeguards

Caption: A common duty coexists with decentralised institutional design.

Evidence spine

- [FACT] Section 63 requires establishment “by a law made by the State Legislature”.
- [FACT] State laws predated the Union Act in several jurisdictions.
- [ANALYSIS] Composition, jurisdiction, tenure, investigative powers and accessibility are design variables.

Model answer

Section 63 of the 2013 Act requires every State to establish a Lokayukta, but directs that this be done **through State legislation**. It does not transplant the Union Lokpal's composition, selection committee, jurisdiction or powers into every State.

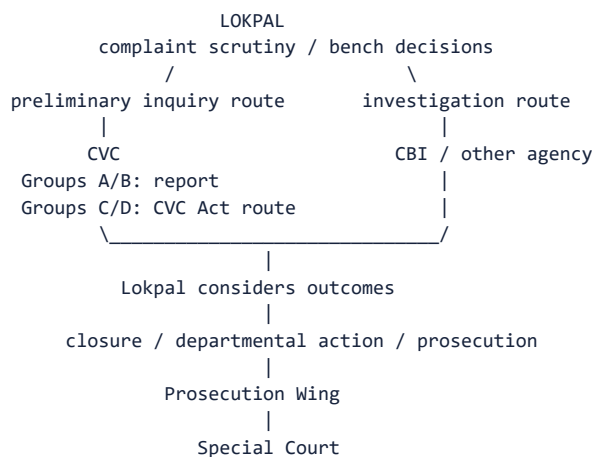
Consequently, State institutions differ on whether the Chief Minister is covered and with what exceptions; which ministers, legislators, officials and local bodies fall within jurisdiction; whether the institution has an investigative wing; how recommendations are enforced; and how appointments, tenure, removal, finance and reporting operate. Older State statutes also reflect their own institutional histories.

[ANALYSIS] This diversity respects federal legislative space and allows contextual design. However, it can generate unequal anti-corruption safeguards, weak enforcement in some States and confusing inter-State comparison. Reform should therefore favour **minimum process principles**—transparent appointments, secure finance, timely filling of vacancies, reasoned disposal and public annual reporting—while preserving State legislative choice rather than imposing an inflexible national template.

Mains 4 — 15 marks | 250 words

Question: Analyse the Lokpal-CVC-CBI relationship. Why is it misleading to describe it as a simple hierarchy?

Visual 69 — Functional Relationship Map



Caption: Authority changes with the function, category and case stage.

Evidence spine

1. [FACT] Section 20 provides assign the CVC different roles for Groups A/B and C/D.
2. [FACT] Section 25 grants Lokpal superintendence/directions over DSPE only for referred matters.
3. [FACT] Lokpal cannot require a particular investigation/disposal outcome.
4. [FACT] Transfer of a DSPE officer investigating a referred case needs Lokpal approval.
5. [FACT] Agency investigation, Lokpal decision, prosecution and trial are distinct.

Model answer

The Lokpal, CVC and CBI form a differentiated anti-corruption chain rather than a single command pyramid.

When Lokpal chooses a preliminary inquiry for covered Union public servants, section 20 routes the matter to the CVC. For Groups A and B, the CVC reports its findings to Lokpal; for Groups C and D, it proceeds under the CVC Act framework. Thus, the CVC is a statutory inquiry channel whose precise accountability depends on employee category.

Where investigation is ordered, the CBI/DSPE or another agency gathers criminal evidence. For matters referred by Lokpal, section 25 vests Lokpal with superintendence and power to give directions. Yet the proviso bars directions requiring investigation or disposal in a particular manner. The transfer of the investigating DSPE officer requires Lokpal approval, protecting continuity without making Lokpal the operational investigator.

After reports are received, Lokpal may close the case, order departmental action or move toward prosecution. Its Prosecution Wing may file and conduct cases, while a Special Court adjudicates guilt.

Calling this a hierarchy is misleading for three reasons. First, Lokpal's authority is **case-specific**, not a general takeover of the CVC or CBI. Second, specialised functions remain institutionally separated. Third, statutory safeguards preserve professional investigation and judicial adjudication.

[ANALYSIS] The arrangement's strength is coordinated accountability; its weakness is multi-agency delay and blurred responsibility. Interoperable digital case tracking, reasoned inter-agency timelines and aggregate stage-wise reporting can improve performance without destroying functional autonomy.

Mains 5 — 15 marks | 250 words

Question: Evaluate the appointment and removal architecture of the Lokpal from the standpoint of independence and accountability.

Visual 70 — Independence-Accountability Balance Sheet

Independence device	Accountability/concern
Multi-member Selection Committee	Executive and political office-holders remain influential
Judicial participant	Does not make selection judicially controlled
Expert Search Committee with diversity	Selection Committee may go beyond its panel
Fixed tenure/age ceiling	Vacancy and delayed appointment can weaken capacity
Salary/service protection	Institution still needs administrative resources
Supreme Court inquiry for misbehaviour	High threshold can make removal deliberately difficult
Direct grounds for insolvency/infirmity etc.	Must not be used to bypass misbehaviour inquiry

Caption: Independence depends on both legal design and timely institutional practice.

Evidence spine

- [FACT] President appoints on Selection Committee recommendation.
- [FACT] Committee: PM, Speaker, LoP, CJI/nominee and eminent jurist.
- [FACT] Search Committee has at least seven experts and a representation floor.
- [FACT] Vacancy does not invalidate appointment.
- [FACT] Five-year/age-70 tenure; post-tenure restrictions.
- [FACT] Section 37 separates misbehaviour inquiry and direct grounds.

Model answer

The Lokpal's architecture attempts to combine plural selection, tenure security and high-threshold removal.

Appointments are formally made by the President on recommendation of a Selection Committee comprising the Prime Minister, Lok Sabha Speaker, Lok Sabha Leader of Opposition, Chief Justice of India or nominee, and an eminent jurist nominated through the statutory process. A Search Committee of at least seven experts, with a diversity requirement, prepares a panel. This broadens inputs beyond the executive.

However, the executive-political component is substantial, the Search Committee's panel is not exclusive, and the present text names the LoP without itself creating a largest-opposition-party substitute. Section 4(2) and *Common Cause* make the institution workable despite vacancy, but they do not eliminate concern about truncated deliberation. Transparent criteria and timely vacancy calendars are therefore important.

Independence is further supported by a fixed tenure of five years or age seventy, protected service conditions and post-tenure restrictions that reduce patronage incentives. For removal on misbehaviour, a petition signed by at least one hundred MPs precedes Presidential reference and Supreme Court inquiry. Suspension may operate during the process. Separate direct grounds—such as insolvency or paid outside employment—address objectively specified incapacity or conflict.

[ANALYSIS] The design is defensible because easy executive removal would destroy independence, while complete insulation would weaken accountability. Its real test is procedural transparency: published eligibility standards,

disclosed selection stages consistent with privacy, timely filling of posts, reasoned institutional reporting, and strict separation of direct-removal grounds from the judicial misbehaviour route.

Mains 6 — 15 marks | 250 words

Question: Examine whether the inquiry-investigation-prosecution pipeline under the Lokpal Act adequately balances effectiveness with due process.

Visual 71 — Process and Safeguard Matrix

Stage	Effectiveness tool	Due-process control
Complaint	Prescribed filing and scrutiny	Identity, affidavit and particulars reduce vague accusation
Preliminary inquiry	CVC/Inquiry Wing or agency route	Prima facie threshold and public-servant hearing
Investigation	CBI/other agency; six-month norm	Recorded reasons for extension
Decision	Three-Member bench options	Closure and opportunity provisions
Attachment	Preserve suspected proceeds	Reasons, ninety-day limit, Special Court control
Prosecution	Lokpal sanction/Prosecution Wing	Sanction is not conviction
Trial	Dedicated Special Court	Judicial adjudication and statutory timeline

Caption: The Act distributes power across stages instead of concentrating accusation, investigation and guilt.

Evidence spine

- Complaint Rules, 2020.
- Sections 20, 25-32 and 35.
- [CURRENT] Formal Inquiry/Prosecution Wing constitution.
- [LIMIT] Notifications prove structure, not complete staffing or speed.

Model answer

The Act uses a staged pipeline to prevent both impunity and punishment by mere allegation.

A complaint must satisfy prescribed form and supporting requirements. Lokpal then decides whether to use preliminary inquiry or investigation. Preliminary inquiry tests prima facie substance; it is not a trial. For public-servant categories, CVC routing distributes workload. Reports have prescribed timelines, and the public servant receives an opportunity of hearing before the statutory course is selected.

Investigation by the CBI or another agency is evidence-oriented and ordinarily subject to a six-month timeline, with extensions requiring recorded reasons. A three-Member Lokpal bench then considers closure, departmental action or prosecution. Search, seizure and provisional attachment preserve material or suspected proceeds, but attachment is time-bound and subject to Special Court control. Prosecution sanction enables proceedings; the Special Court alone adjudicates guilt.

This design serves effectiveness through specialised agencies, continuity safeguards for investigating officers, own statutory wings, coercive preservation powers and dedicated courts. It protects due process through complaint particulars, prima facie filtering, hearing, recorded reasons, bench decisions and judicial control.

Yet [ANALYSIS] multi-stage routing can also produce delay, responsibility gaps and opaque closure. Formal constitution of the Inquiry Wing in 2024 and Prosecution Wing in 2025 is institutionally relevant but cannot, without staffing/output evidence, establish full capacity.

The balance should be strengthened through stage-wise public dashboards using aggregate data, speaking closure orders subject to lawful confidentiality, interoperable case files, independent staffing and routine publication of reasons for systemic delay—not by collapsing inquiry, investigation and adjudication into one body.

Mains 7 — 20 marks | 250 words

Question: “The Lokpal Act is broad in jurisdiction but filtered in operation.” Critically analyse with reference to covered persons, parliamentary privilege, the Prime Minister, limitation and institutional procedure.

Visual 72 — Breadth-versus-Filter Grid

Breadth of reach	Operational filter
PM, present/former	Excluded domains, full bench, two-thirds threshold, in-camera
Union Ministers	Complaint and section 20 process
MPs	Article 105(2) speech/vote protection
Groups A-D public servants	CVC category routing
Former public servants	Conduct must relate to covered period
Government-linked/financed bodies	Statutory and notified conditions
Specified foreign-contribution entities	Monetary threshold in section 14(1)(h)
Historical allegations	Seven-year bar under section 53

Caption: Jurisdictional inclusion does not mean automatic investigation or guilt.

Evidence spine

1. Section 14 person/entity coverage.
2. Article 105(2) and section 14(2); *Sita Soren* on bribery.
3. PM provisos.
4. Section 20 process.
5. Section 53 limitation.

Model answer

The Lokpal Act deliberately reaches high political office and the administrative hierarchy, but translates that reach into action through legal filters.

Its jurisdiction covers a person who is or has been Prime Minister; Union Ministers; MPs; Groups A, B, C and D Union public servants; former functionaries for conduct during the covered period; and specified officers of government-connected, financed or foreign-contribution-receiving entities. This breadth counters the idea that anti-corruption oversight should stop below the political executive.

Breadth is nevertheless qualified. A PM complaint cannot concern the listed sovereign domains and requires a full-bench, two-thirds decision, in-camera inquiry and special control over dismissed records. For MPs, section 14(2) respects Article 105(2) for anything said or any vote given in Parliament. After *Sita Soren*, bribery is not protected merely because it relates to a legislative vote, but genuine speech/vote functions remain privileged.

For officials, preliminary-inquiry routing through the CVC varies between Groups A/B and C/D. Covered entities depend on statutory and, in some clauses, notified financial conditions. Former status does not create immunity, but jurisdiction is tied to the period of covered service. Section 53 bars a complaint after seven years from the alleged offence.

Procedure supplies further filters: prescribed complaint material, scrutiny, prima facie inquiry, hearing, three-Member bench consideration, professional investigation and Special Court adjudication. These protect reputation and institutional stability.

[ANALYSIS] Filters are legitimate when they secure due process; they become problematic if vacancy, delay, secrecy or inter-agency dependence makes them barriers to accountability. Reforms should therefore distinguish **safeguard from obstruction**: retain evidentiary thresholds and judicial control, but publish aggregate stage-wise outcomes, fill posts predictably, strengthen own-wing capacity and record reasons for delay or closure. The Act's success depends not only on whom it covers, but on whether a credible complaint can traverse the filtered pathway in time.

Mains 8 — 20 marks | 250 words

Question: Assess the institutional strengths and weaknesses of the Lokpal framework. Suggest reforms that preserve federalism, due process and investigative autonomy.

Visual 73 — Reform Priority Ladder

HIGH IMPACT / LOW LEGAL DISRUPTION
vacancy calendar | staffing | digital case tracking
aggregate reporting | reasoned stage timelines

rules/standards clarification | agency protocols
transparent selection and search criteria

carefully debated statutory amendments only
=====

Preserve: court adjudication, professional investigation,
State legislative space, fair-hearing safeguards

Caption: Administrative repair should precede indiscriminate concentration of power.

Evidence spine

- Broad section 14 jurisdiction and PM safeguards.
- Plural selection, fixed tenure, removal protection.
- Inquiry/Prosecution Wings and Special Courts.
- CVC/CBI functional dependence and section 25 limits.
- Section 44 prescription gap/status caution.
- Section 63 State-law diversity.
- *Common Cause*, *Sita Soren*, *Lok Prahari* boundary and 2025 High Court-judge stay.

Model answer

The Lokpal framework's principal strength is that it makes high-level corruption subject to a statutory, multi-stage institution rather than leaving it entirely to executive vigilance. Jurisdiction extends from the Prime Minister, with special safeguards, to Ministers, MPs within privilege limits, Union officials and specified entities. A diverse multi-member body, fixed tenure, protected removal route, own Inquiry and Prosecution Wings, referred-case superintendence over the CBI, attachment powers and Special Courts create an integrated accountability architecture.

Its restraint is also a strength. Complaint does not equal guilt; preliminary inquiry, investigation, sanction and trial remain distinct. Lokpal cannot direct CBI disposal in a particular manner, and court control follows attachment and prosecution. State Lokayuktas are established through State law, preserving federal design choice.

Weaknesses arise in implementation. Multi-agency routing can fragment responsibility; vacancies and delayed institutional creation reduce capacity; executive-political influence remains in selection; Search Committee recommendations are non-exclusive; and secrecy or sparse reasoned reporting may obscure closure patterns. The amended section 44 depends on prescribed form/manner, and checked official repositories did not yield a later fresh replacement for the old redundant rules. Formal wing constitution does not by itself prove full staffing or performance. State diversity can become unequal minimum protection.

Reforms should:

1. publish advance vacancy calendars and transparent eligibility/selection criteria;
2. ensure independent staffing and budget execution for both wings;
3. create interoperable, time-stamped Lokpal-CVC-CBI case tracking;
4. publish aggregate stage-wise receipts, closures, referrals and delay reasons without freezing volatile counts in static notes;
5. clarify current asset-declaration rules through valid prescription;
6. develop model minimum Lokayukta principles—-independent selection, finance, reporting and reasoned disposal—without imposing one rigid State structure;
7. preserve agency professionalism, fair hearing and Special Court adjudication.

[ANALYSIS] The correct reform objective is not a legally omnipotent super-agency. It is a capable, transparent coordinator whose independence is matched by due process, reviewable reasons and federal sensitivity.

Visual 74 — Eight-Answer Reuse Matrix

Theme	Useful questions
Statutory character and powers	Mains 1, 6
PM accountability	Mains 2, 7
Federalism/Lokayuktas	Mains 3, 8
CVC-CBI coordination	Mains 4, 6, 8
Independence/removal	Mains 5, 8
Due process	Mains 1, 6, 7
Reform	Mains 3-8

Caption: Reuse evidence, but reshape the argument to the directive and word limit.